

MASTER SERVICES AGREEMENT

Agreement No. BP-GR/MSA/2026/001

Sample document for testing - all parties, names and details are fictional

This Master Services Agreement (the "**Agreement**") is made on **1 January 2026** (the "**Effective Date**")

BETWEEN:

- (1) **BLUEPEAK SOFTWARE SOLUTIONS PRIVATE LIMITED**, a company incorporated under the Companies Act, 2013, with its registered office at 42 Lakeview Road, Indiranagar, Bengaluru 560038, Karnataka, India (the "**Supplier**"); and
 - (2) **GREENFIELD RETAIL LIMITED**, a company incorporated under the Companies Act, 2013, with its registered office at 7 Market Street, Koregaon Park, Pune 411001, Maharashtra, India (the "**Customer**"),
- each a "**party**" and together the "**parties**".

RECITALS

A. The Supplier is in the business of designing, developing, hosting and supporting enterprise software, including retail point-of-sale, inventory management and e-commerce platforms.

B. The Customer operates a chain of retail stores and an online storefront in India and wishes to engage the Supplier to provide software development, application maintenance and related support services.

C. The parties wish to set out in this Agreement the general terms on which the Supplier will provide services, with the specific services, deliverables, timelines and fees for each engagement to be agreed in separate Statements of Work.

NOW, THEREFORE, in consideration of the mutual promises set out below, the parties agree as follows:

1. Definitions and Interpretation

1.1 In this Agreement, unless the context otherwise requires, the following words have the following meanings:

- (a) "**Acceptance**" means the Customer's written confirmation that a Deliverable meets its Acceptance Criteria, or deemed acceptance under Clause 5.4.
- (b) "**Acceptance Criteria**" means the functional and non-functional requirements a Deliverable must satisfy, as set out in the relevant Statement of Work.
- (c) "**Affiliate**" means any entity that directly or indirectly controls, is controlled by, or is under common control with a party, where "control" means ownership of more than fifty percent (50%) of the voting shares.
- (d) "**Applicable Law**" means all laws, regulations and binding guidance in force in India from time to time, including the Information Technology Act, 2000 and the Digital Personal Data Protection Act, 2023.
- (e) "**Business Day**" means a day other than a Saturday, Sunday or public holiday in Bengaluru, Karnataka.
- (f) "**Change Request**" means a written request to change the scope, timeline or fees of a Statement of Work, submitted under Clause 6.
- (g) "**Confidential Information**" means all non-public information disclosed by or on behalf of a party, whether before or after the Effective Date, including business plans, pricing, customer lists, source code, system architecture and Personal Data.
- (h) "**Customer Data**" means all data, including Personal Data, that the Customer or its customers provide to the Supplier or that the Supplier generates on the Customer's behalf in performing the Services.

- (i) **"Deliverable"** means any software, documentation, report or other item to be delivered to the Customer under a Statement of Work.
- (j) **"Intellectual Property Rights"** means patents, copyright, trade marks, designs, database rights, trade secrets and all similar rights anywhere in the world, whether registered or not.
- (k) **"Personal Data"** has the meaning given to "personal data" in the Digital Personal Data Protection Act, 2023.
- (l) **"Pre-existing Materials"** means any materials, tools, libraries or know-how owned by a party before the Effective Date or developed independently of this Agreement.
- (m) **"Services"** means the services described in a Statement of Work, together with any related services reasonably necessary to perform them.
- (n) **"Service Levels"** means the performance standards set out in Schedule B.
- (o) **"Statement of Work"** or **"SOW"** means a document substantially in the form of Schedule A, signed by authorised representatives of both parties.

1.2 Headings are for convenience only and do not affect interpretation. Words in the singular include the plural and vice versa. The words "including" and "include" mean "including without limitation".

1.3 If there is any conflict between the documents forming this Agreement, they take precedence in the following order: (a) the clauses of this Agreement; (b) Schedule D (Data Processing Terms); (c) the other Schedules; and (d) the relevant Statement of Work, except where the Statement of Work expressly states that a specific provision of it overrides a named clause of this Agreement.

2. Scope and Structure

2.1 This Agreement sets out the terms on which the Supplier will provide Services to the Customer. It does not by itself oblige the Customer to purchase any Services or commit to any minimum spend.

2.2 Each Statement of Work forms a separate contract incorporating the terms of this Agreement. Termination or expiry of one Statement of Work does not affect any other Statement of Work.

2.3 The Customer's Affiliates may enter into Statements of Work directly with the Supplier on the terms of this Agreement. The Affiliate signing a Statement of Work is solely responsible for its obligations under it.

2.4 Nothing in this Agreement makes either party the exclusive provider or customer of the other. The Customer may obtain similar services from third parties.

3. Statements of Work

3.1 Each Statement of Work must describe, at a minimum: (a) the Services and Deliverables; (b) the project timeline and key milestones; (c) the Acceptance Criteria; (d) the fees and payment schedule; (e) the key personnel; and (f) any Customer dependencies.

3.2 A Statement of Work becomes binding only when signed by authorised representatives of both parties. The Supplier is not obliged to start work, and the Customer is not obliged to pay for work performed, before signature.

3.3 The Supplier will deliver the Services in accordance with the timeline in the relevant Statement of Work. Time is of the essence only for milestones expressly identified as "critical milestones" in that Statement of Work.

4. Supplier Obligations and Personnel

4.1 The Supplier will perform the Services: (a) with the degree of skill, care and diligence expected of a leading provider of similar services; (b) in compliance with Applicable Law; and (c) in accordance with the Customer's reasonable IT, security and site policies notified to the Supplier in writing.

4.2 The Supplier will assign suitably qualified and experienced personnel to perform the Services. Personnel identified as "key personnel" in a Statement of Work may not be removed or replaced without the Customer's prior written consent, which will not be unreasonably withheld, except in cases of resignation, illness or termination of employment.

4.3 The Customer may, on reasonable grounds, require the Supplier to remove any individual from the Services. The Supplier will provide a suitably qualified replacement within ten (10) Business Days, at no additional cost to the Customer.

4.4 The Supplier is solely responsible for the wages, benefits, taxes and statutory contributions of its personnel. Nothing in this Agreement creates an employment relationship between the Customer and any Supplier personnel.

4.5 The Supplier will carry out background verification of all personnel who will access Customer systems or Customer Data, including identity, education, previous employment and criminal record checks, to the extent permitted by Applicable Law.

4.6 The Supplier will provide the Customer with a written project status report every two (2) weeks, covering progress against milestones, risks, issues and planned activities for the next reporting period.

5. Customer Obligations and Acceptance

5.1 The Customer will: (a) provide timely access to its premises, systems, information and personnel as reasonably required by the Supplier; (b) make decisions and give approvals within the timeframes set out in the Statement of Work; and (c) appoint a project manager with authority to make day-to-day decisions.

5.2 If the Supplier is delayed or prevented from performing the Services because of the Customer's failure to meet its obligations, the Supplier will be granted a reasonable extension of time and may recover its reasonable additional costs, provided it notifies the Customer in writing promptly after becoming aware of the delay.

5.3 On delivery of each Deliverable, the Customer will have fifteen (15) Business Days (the "Acceptance Period") to test it against the Acceptance Criteria. If the Deliverable fails to meet the Acceptance Criteria, the Customer will give the Supplier a written notice describing each failure in reasonable detail. The Supplier will correct the failures and re-deliver within ten (10) Business Days, after which a new Acceptance Period will begin.

5.4 A Deliverable is deemed accepted if: (a) the Customer does not give a notice of failure within the Acceptance Period; or (b) the Customer uses the Deliverable in a live production environment for any purpose other than testing.

5.5 If a Deliverable fails acceptance testing for a third time, the Customer may, at its option: (a) allow the Supplier a further opportunity to correct it; (b) accept the Deliverable subject to a reasonable reduction in fees; or (c) terminate the relevant Statement of Work and recover all fees paid for the failed Deliverable.

6. Change Control

6.1 Either party may propose a change to a Statement of Work by submitting a Change Request. The Supplier will, within five (5) Business Days of receiving or submitting a Change Request, provide a written impact assessment setting out the effect of the change on scope, timeline, fees, resources and risk.

6.2 No change is binding unless documented in a change order signed by both parties. Until a change order is signed, the parties will continue to perform the Statement of Work without the change.

6.3 The Supplier will not charge for preparing impact assessments for Change Requests that require less than two (2) days of effort to assess.

7. Fees, Invoicing and Payment

7.1 The Customer will pay the fees set out in each Statement of Work. Unless a Statement of Work states otherwise, Services are charged on a time-and-materials basis at the rates in Schedule C.

7.2 Fixed-price Statements of Work will be invoiced against milestones as set out in the Statement of Work. Time-and-materials Statements of Work will be invoiced monthly in arrears, supported by timesheets approved by the Customer's project manager.

7.3 The Customer will pay each undisputed invoice within forty-five (45) days of receiving a valid invoice. Payment will be made by electronic transfer to the bank account specified on the invoice.

7.4 If the Customer disputes any part of an invoice in good faith, it will notify the Supplier in writing within fifteen (15) days of receipt, giving reasons. The Customer will pay the undisputed portion on time, and the parties will resolve the disputed amount under Clause 23.

7.5 If the Customer fails to pay an undisputed amount by its due date, the Supplier may charge simple interest on the overdue amount at the rate of one percent (1%) per month from the due date until payment. If any undisputed amount remains unpaid for more than sixty (60) days after the due date, the Supplier may suspend the Services on fifteen (15) days' written notice.

7.6 All fees are exclusive of Goods and Services Tax (GST) and other applicable indirect taxes, which the Customer will pay in addition at the applicable rate. Where the Customer is required by law to withhold tax at source, it will deduct the tax, pay it to the relevant authority, and provide the Supplier with the corresponding tax deduction certificate within the statutory period.

7.7 The Customer will reimburse reasonable travel and accommodation expenses only where they have been approved in writing in advance and are incurred in accordance with the Customer's travel policy. Expenses will be invoiced at cost, without mark-up, with supporting receipts.

7.8 The rates in Schedule C are fixed for the first twelve (12) months after the Effective Date. After that, the Supplier may increase its rates once in any twelve (12) month period by giving at least ninety (90) days' written notice, provided that the increase does not exceed the lower of five percent (5%) and the annual change in the Consumer Price Index published by the Government of India.

8. Service Levels and Service Credits

8.1 The Supplier will meet or exceed the Service Levels set out in Schedule B for any application maintenance and support Services.

8.2 The Supplier will measure its performance against the Service Levels and provide the Customer with a monthly service report within five (5) Business Days of the end of each month.

8.3 If the Supplier fails to meet a Service Level, the Customer will be entitled to the service credits set out in Schedule B. Service credits will be deducted from the next invoice. The total service credits in any month will not exceed fifteen percent (15%) of the monthly support fees.

8.4 The parties agree that service credits are a price adjustment reflecting the reduced value of the Services and are not a penalty. Service credits do not limit the Customer's other rights and remedies, except that any damages awarded for the same failure will be reduced by the service credits already paid.

8.5 If the Supplier fails to meet the same Service Level in three (3) consecutive months, or in any four (4) months in a rolling twelve (12) month period, this will constitute a material breach for the purposes of Clause 19.3.

9. Intellectual Property

9.1 Each party retains ownership of its Pre-existing Materials. Nothing in this Agreement transfers ownership of a party's Pre-existing Materials to the other.

9.2 Subject to the Customer paying the fees for the relevant Deliverable in full, all Intellectual Property Rights in Deliverables created specifically for the Customer under a Statement of Work ("Custom Deliverables") will vest in the Customer on creation. The Supplier hereby assigns to the Customer, with full title guarantee, all such rights, and will execute any documents reasonably required to perfect the assignment.

9.3 Where the Supplier incorporates any of its Pre-existing Materials into a Deliverable, the Supplier grants the Customer and its Affiliates a non-exclusive, perpetual, irrevocable, royalty-free, worldwide licence to use, copy and modify those Pre-existing Materials solely as part of that Deliverable.

9.4 The Supplier will not incorporate any open-source software into a Deliverable under a licence that would require the Customer to disclose its proprietary source code, unless the Customer has approved it in writing in advance. The Supplier will provide a list of all open-source components and their licences with each software Deliverable.

9.5 The Supplier may use general know-how, skills and experience gained in performing the Services, provided it does not use or disclose the Customer's Confidential Information.

10. Confidentiality

10.1 Each party (the "Recipient") will keep confidential all Confidential Information of the other party (the "Discloser"), and will not use it except to perform its obligations or exercise its rights under this Agreement.

10.2 The Recipient may disclose Confidential Information only to its employees, officers, professional advisers, and approved subcontractors who need to know it for the purposes of this Agreement and who are bound by written confidentiality obligations no less protective than those in this Clause 10. The Recipient is responsible for any breach of this Clause by those persons.

10.3 The obligations in this Clause 10 do not apply to information that the Recipient can show by written records: (a) is or becomes publicly available other than through a breach of this Agreement; (b) was lawfully in its possession before disclosure by the Discloser; (c) is lawfully received from a third party without a duty of confidentiality; or (d) was independently developed without reference to the Discloser's Confidential Information.

10.4 The Recipient may disclose Confidential Information to the extent required by law, court order or a regulatory authority, provided that, where legally permitted, it gives the Discloser prompt written notice and reasonable assistance to seek a protective order.

10.5 On termination or expiry of this Agreement, or on the Discloser's written request, the Recipient will promptly return or securely destroy all Confidential Information of the Discloser and certify in writing that it has done so, except for copies it is required by law to retain.

10.6 The obligations in this Clause 10 continue for five (5) years after termination or expiry of this Agreement, except in relation to trade secrets and Personal Data, where they continue indefinitely.

11. Data Protection

11.1 Each party will comply with its obligations under Applicable Law relating to Personal Data. In relation to Customer Data that includes Personal Data, the Customer is the data fiduciary and the Supplier is the data processor.

11.2 The Supplier will process Personal Data only on the Customer's documented instructions, only for the purpose of performing the Services, and in accordance with Schedule D.

11.3 The Supplier will not transfer Personal Data outside India without the Customer's prior written consent, and will ensure that any such transfer complies with Applicable Law.

11.4 The Supplier will notify the Customer without undue delay, and in any event within twenty-four (24) hours, after becoming aware of any personal data breach affecting Customer Data. The notice will describe the nature of the breach, the categories and approximate number of individuals affected, the likely consequences, and the measures taken or proposed to address it.

11.5 The Supplier will provide reasonable assistance to the Customer in responding to requests from individuals exercising their rights under Applicable Law and in notifying the Data Protection Board of India where required.

12. Information Security

12.1 The Supplier will implement and maintain appropriate technical and organisational measures to protect Customer Data against unauthorised access, loss, alteration or disclosure. These measures will be no less rigorous than those required by ISO/IEC 27001 and will include, at a minimum:

- (a) encryption of Customer Data in transit using TLS 1.2 or higher, and at rest using AES-256 or equivalent;
- (b) role-based access control, granting access on a least-privilege basis and reviewing it at least quarterly;
- (c) multi-factor authentication for all remote and privileged access;
- (d) logging and monitoring of access to systems holding Customer Data, with logs retained for at least one hundred and eighty (180) days;
- (e) vulnerability scanning at least monthly and independent penetration testing at least annually, with critical vulnerabilities remediated within seven (7) days; and
- (f) secure software development practices, including peer code review and automated security testing before release to production.

12.2 The Supplier will maintain a documented business continuity and disaster recovery plan for the Services, test it at least once a year, and share a summary of the test results with the Customer on request. For hosted systems, the recovery time objective is four (4) hours and the recovery point objective is one (1) hour.

12.3 The Supplier will promptly notify the Customer of any actual or reasonably suspected security incident affecting the Services or Customer Data, and will cooperate fully with the Customer's investigation.

13. Audit Rights

13.1 The Supplier will keep complete and accurate records relating to the Services, the fees charged and its compliance with this Agreement for at least seven (7) years after the relevant Services are performed.

13.2 The Customer, or an independent auditor appointed by it and bound by confidentiality obligations, may audit the Supplier's compliance with this Agreement once in any twelve (12) month period, on at least thirty (30) days' written notice, during normal business hours. The Customer may audit more frequently if required by a regulator or following a security incident or personal data breach.

13.3 Each party will bear its own costs of an audit, except that if an audit reveals an overcharge of more than five percent (5%) in any period, or a material breach of Clauses 10 to 12, the Supplier will reimburse the Customer's reasonable audit costs and promptly refund any overcharge.

14. Subcontracting

14.1 The Supplier will not subcontract any part of the Services without the Customer's prior written consent. The approved subcontractors at the Effective Date are listed in the relevant Statement of Work.

14.2 The Supplier will ensure that each subcontractor is bound by written terms that are no less protective of the Customer than this Agreement, in particular regarding confidentiality, data protection, information security and audit rights.

14.3 The Supplier remains fully responsible for the performance of the Services and for all acts and omissions of its subcontractors as if they were its own.

15. Warranties

15.1 Each party warrants that: (a) it is duly incorporated and validly existing under the laws of India; (b) it has full power and authority to enter into and perform this Agreement; and (c) entering into this Agreement does not breach any other agreement by which it is bound.

15.2 The Supplier warrants that: (a) each Deliverable will conform in all material respects to its specification and Acceptance Criteria for a period of ninety (90) days after Acceptance (the "Warranty Period"); (b) the Deliverables will not, when delivered, contain any virus, malware, time-lock or other harmful code; and (c) the Customer's use of the Deliverables in accordance with this Agreement will not infringe the Intellectual Property Rights of any third party.

15.3 If the Customer notifies the Supplier of a defect during the Warranty Period, the Supplier will correct the defect at no additional cost within the timeframes set out in Schedule B for the relevant priority level.

15.4 Except as expressly set out in this Agreement, all warranties, conditions and representations, whether express or implied by statute, common law or otherwise, are excluded to the fullest extent permitted by law.

16. Indemnities

16.1 The Supplier will defend, indemnify and hold harmless the Customer and its Affiliates against all losses, damages, costs (including reasonable legal fees) and expenses arising from any third-party claim that the Deliverables or the Services infringe that third party's Intellectual Property Rights (an "IP Claim").

16.2 If an IP Claim is made or, in the Supplier's reasonable opinion, is likely to be made, the Supplier may, at its own cost: (a) obtain for the Customer the right to continue using the affected item; (b) modify the item so that it is no longer infringing without materially reducing its functionality; or (c) if neither (a) nor (b) is reasonably achievable, accept return of the item and refund the fees paid for it.

16.3 The Supplier has no liability for an IP Claim to the extent it arises from: (a) modifications made by anyone other than the Supplier; (b) use of the Deliverable in combination with items not supplied or approved by the Supplier; or (c) compliance with the Customer's detailed written specifications.

16.4 Each party will indemnify the other against losses arising from claims by a regulator or individual resulting from the indemnifying party's breach of Clause 11 (Data Protection).

16.5 A party seeking indemnification must: (a) notify the indemnifying party promptly in writing of the claim; (b) allow the indemnifying party sole control of the defence and settlement, provided no settlement admits fault on behalf of the indemnified party without its consent; and (c) provide reasonable cooperation at the indemnifying party's expense.

17. Limitation of Liability

17.1 Nothing in this Agreement limits or excludes either party's liability for: (a) death or personal injury caused by negligence; (b) fraud or fraudulent misrepresentation; (c) breach of Clause 10 (Confidentiality); (d) the indemnities in Clause 16; or (e) any liability that cannot be limited or excluded by law.

17.2 Subject to Clause 17.1, neither party will be liable to the other for any loss of profit, revenue, goodwill or anticipated savings, or for any indirect, special or consequential loss, however arising.

17.3 Subject to Clauses 17.1 and 17.4, each party's total aggregate liability arising out of or in connection with this Agreement in any contract year will not exceed one hundred percent (100%) of the total fees paid and payable under all Statements of Work in the twelve (12) months immediately preceding the event giving rise to the claim.

17.4 The Supplier's total aggregate liability for breach of Clause 11 (Data Protection) or Clause 12 (Information Security) will not exceed the greater of two hundred percent (200%) of the fees paid in the preceding twelve (12) months and INR 5,00,00,000 (five crore rupees).

17.5 The Customer's obligation to pay fees properly due under this Agreement is not subject to the limits in this Clause 17.

18. Insurance

18.1 The Supplier will maintain, with reputable insurers, for the term of this Agreement and for at least three (3) years afterwards: (a) professional indemnity insurance of at least INR 10,00,00,000 (ten crore rupees) per claim; (b) cyber liability insurance of at least INR 5,00,00,000 (five crore rupees) per claim; (c) commercial general liability insurance of at least INR 2,00,00,000 (two crore rupees) per occurrence; and (d) employee compensation insurance as required by Applicable Law.

18.2 The Supplier will provide certificates of insurance to the Customer on request and will notify the Customer within ten (10) Business Days of any cancellation or material reduction in cover.

19. Term and Termination

19.1 This Agreement begins on the Effective Date and continues for an initial term of three (3) years. It will then renew automatically for successive periods of one (1) year unless either party gives written notice of non-renewal at least ninety (90) days before the end of the then-current term.

19.2 The Customer may terminate this Agreement or any Statement of Work for convenience at any time by giving the Supplier at least thirty (30) days' written notice. In that case, the Customer will pay: (a) all fees for Services performed up to the termination date; and (b) any reasonable, non-cancellable costs committed by the Supplier before receiving the notice, provided the Supplier uses reasonable efforts to mitigate them.

19.3 Either party may terminate this Agreement or any affected Statement of Work with immediate effect by written notice if the other party: (a) commits a material breach that is incapable of remedy; or (b) commits a material breach that is capable of remedy and fails to remedy it within thirty (30) days of receiving written notice describing the breach and requiring it to be remedied.

19.4 Either party may terminate this Agreement with immediate effect by written notice if the other party becomes insolvent, has a resolution professional or liquidator appointed, has an application admitted against it under the Insolvency and Bankruptcy Code, 2016, or ceases or threatens to cease carrying on business.

19.5 The Customer may terminate this Agreement with immediate effect by written notice if the Supplier undergoes a change of control in favour of a competitor of the Customer, or if the Supplier commits a serious breach of Clause 11 (Data Protection) or Clause 12 (Information Security).

19.6 The Supplier may terminate a Statement of Work by written notice if the Customer fails to pay any undisputed amount within thirty (30) days after receiving a written reminder that the amount is overdue.

20. Consequences of Termination and Exit Assistance

20.1 Termination or expiry does not affect any rights or remedies that have accrued up to the date of termination. Clauses 9, 10, 11, 13, 16, 17, 20, 23 and 24, and any other clause that by its nature is intended to survive, will continue in force.

20.2 On termination or expiry for any reason, the Supplier will, for up to six (6) months if requested by the Customer (the "Exit Period"), provide reasonable assistance to transfer the Services to the Customer or a

replacement supplier in an orderly manner. This assistance will include: (a) knowledge-transfer sessions; (b) handover of all documentation, source code, configuration and credentials; and (c) continued performance of the Services during the transition at the rates in Schedule C.

20.3 Within thirty (30) days after the end of the Exit Period, the Supplier will return all Customer Data to the Customer in a commonly used, machine-readable format and then securely delete all copies, certifying the deletion in writing.

20.4 Exit assistance will be provided at no additional charge where the Customer terminates under Clause 19.3 or 19.5. In all other cases, it will be charged at the rates in Schedule C.

21. Force Majeure

21.1 Neither party will be in breach of this Agreement or liable for any delay or failure in performance caused by events beyond its reasonable control, including natural disasters, epidemics, war, terrorism, civil unrest, government action, or failure of public utility networks (a "Force Majeure Event"). A Force Majeure Event does not include strikes by the affected party's own personnel or the failure of its subcontractors, unless that failure is itself caused by a Force Majeure Event.

21.2 The affected party will notify the other party promptly of the Force Majeure Event and its expected duration, use all reasonable efforts to mitigate its effects, and, in the Supplier's case, invoke its business continuity plan.

21.3 If a Force Majeure Event prevents performance of all or a material part of the Services for more than thirty (30) consecutive days, the party not affected may terminate the affected Statement of Work by giving fifteen (15) days' written notice.

22. Non-Solicitation

22.1 During the term of this Agreement and for twelve (12) months after it ends, neither party will directly solicit for employment any employee of the other party who was materially involved in the Services, without the other party's prior written consent.

22.2 This Clause does not prevent either party from hiring a person who responds to a general job advertisement not specifically targeted at the other party's employees.

23. Dispute Resolution

23.1 If a dispute arises out of or in connection with this Agreement, either party may give the other a written notice of dispute. The parties' project managers will meet within ten (10) Business Days to try to resolve it in good faith.

23.2 If the project managers cannot resolve the dispute within ten (10) Business Days of meeting, it will be escalated to a senior executive of each party with authority to settle it, who will meet within a further ten (10) Business Days.

23.3 If the dispute is not resolved within thirty (30) days of the notice of dispute, either party may refer it to arbitration under the Arbitration and Conciliation Act, 1996. The tribunal will consist of a sole arbitrator appointed by mutual agreement or, failing agreement, in accordance with that Act. The seat and venue of arbitration will be Bengaluru, and the language of the arbitration will be English.

23.4 Nothing in this Clause prevents either party from seeking urgent interim or injunctive relief from a competent court.

23.5 The parties will continue to perform their obligations under this Agreement while any dispute is being resolved, except where the Agreement has been terminated.

24. Governing Law and Jurisdiction

24.1 This Agreement and any dispute or claim arising out of or in connection with it are governed by the laws of India.

24.2 Subject to Clause 23, the courts of Bengaluru, Karnataka have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement.

25. Notices

25.1 Any notice under this Agreement must be in writing and delivered by hand, sent by registered post or reputable courier, or sent by email to the address set out below (or any other address notified in writing):

- (a) **Supplier:** Bluepeak Software Solutions Private Limited, 42 Lakeview Road, Indiranagar, Bengaluru 560038. Attention: Legal Department. Email: legal@bluepeak.example
- (b) **Customer:** Greenfield Retail Limited, 7 Market Street, Koregaon Park, Pune 411001. Attention: Head of Procurement. Email: contracts@greenfield.example

25.2 A notice is deemed received: (a) if delivered by hand, on delivery; (b) if sent by registered post or courier, on the third (3rd) Business Day after posting; or (c) if sent by email, at the time of transmission, provided no delivery-failure message is received. A notice of breach or termination sent by email must also be sent by one of the other methods.

26. General

26.1 **Assignment.** Neither party may assign, transfer or novate this Agreement without the other party's prior written consent, except that the Customer may assign it to an Affiliate or to a successor to all or substantially all of its business on written notice to the Supplier.

26.2 **Entire agreement.** This Agreement, together with its Schedules and all Statements of Work, constitutes the entire agreement between the parties and supersedes all prior discussions, proposals and agreements relating to its subject matter.

26.3 **Variation.** No variation of this Agreement is effective unless it is in writing and signed by authorised representatives of both parties.

26.4 **Waiver.** A failure or delay in exercising any right or remedy does not waive that or any other right or remedy.

26.5 **Severability.** If any provision of this Agreement is found invalid or unenforceable, it will be modified to the minimum extent necessary to make it enforceable, and the remaining provisions will continue in full force.

26.6 **Independent contractors.** The parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency or employment relationship between them.

26.7 **Anti-bribery.** Each party will comply with the Prevention of Corruption Act, 1988 and all other applicable anti-bribery laws, and will not offer or accept any bribe or improper payment in connection with this Agreement.

26.8 **Publicity.** Neither party will use the other's name or logo, or make any public announcement about this Agreement, without the other party's prior written consent.

26.9 **Counterparts.** This Agreement may be signed in any number of counterparts, including by electronic signature, each of which is an original and all of which together constitute one agreement.

IN WITNESS WHEREOF

the parties have caused this Agreement to be executed by their duly authorised representatives on the Effective Date.

Signed for and on behalf of

Bluepeak Software Solutions Private Limited

Signed for and on behalf of

Greenfield Retail Limited

Signature: _____

Name: Asha Menon

Title: Director, Delivery

Date: 1 January 2026

Signature: _____

Name: Daniel Joseph

Title: Chief Information Officer

Date: 1 January 2026

SCHEDULE A - STATEMENT OF WORK TEMPLATE

Each Statement of Work entered into under this Agreement will include the following information:

- (a) **SOW reference and title**, and the date of this Agreement under which it is issued;
- (b) **Background and objectives** of the engagement;
- (c) **Scope of Services**, including any items expressly out of scope;
- (d) **Deliverables**, each with a description, due date and Acceptance Criteria;
- (e) **Project plan and milestones**, identifying any critical milestones;
- (f) **Pricing model** (fixed price or time-and-materials), fees, payment milestones and any expense cap;
- (g) **Key personnel** of each party, and the agreed team structure and location (onsite, offshore or hybrid);
- (h) **Customer dependencies**, including environments, data, access and decision timelines;
- (i) **Approved subcontractors**, if any; and
- (j) **Project-specific terms**, including any provisions overriding this Agreement under Clause 1.3.

SCHEDULE B - SERVICE LEVELS

B.1 Support hours. Priority 1 incidents are supported 24 hours a day, 7 days a week. All other incidents are supported from 9:00 to 21:00 IST on Business Days.

B.2 Incident priorities and resolution targets. The Supplier will respond to and resolve incidents within the following times, measured from the time the incident is logged in the Supplier's ticketing system:

Priority	Definition	Response	Resolution / workaround
P1 – Critical	Production system down, or a core business function (billing, checkout, store POS) unavailable for all users	30 minutes	4 hours
P2 – High	Core function seriously degraded, or unavailable for a significant group of users; no workaround available	2 hours	1 Business Day
P3 – Medium	Non-core function impaired, or a core function affected with a reasonable workaround	8 business hours	5 Business Days
P4 – Low	Cosmetic issue, documentation error, or request for information	2 Business Days	Next scheduled release

B.3 Availability. Production systems hosted or managed by the Supplier will be available at least 99.9% of the time in each calendar month, excluding scheduled maintenance notified at least five (5) Business Days in advance and carried out between 01:00 and 05:00 IST.

B.4 Service credits. If a Service Level is missed in any month, the Customer will receive the following service credits, calculated as a percentage of the monthly support fees for the affected Statement of Work:

Service Level missed	Service credit
Availability between 99.5% and 99.9%	5%
Availability between 99.0% and 99.5%	10%
Availability below 99.0%	15%
More than 10% of P1 or P2 incidents resolved late in the month	5%
Monthly service report delivered late	1%

B.5 The total service credits in any month are capped at fifteen percent (15%) of the monthly support fees, as set out in Clause 8.3.

SCHEDULE C - RATE CARD

Role	Offshore rate (INR / hour)	Onsite rate (INR / hour)
Engagement Manager	4,200	6,500
Solution Architect	3,800	5,800
Senior Software Engineer	2,600	4,000
Software Engineer	1,800	2,800
QA / Test Engineer	1,600	2,500
DevOps Engineer	2,800	4,300
Business Analyst	2,400	3,700

C.1 Rates are exclusive of GST and are fixed for the first twelve (12) months, after which Clause 7.8 applies.

C.2 A standard working day is eight (8) hours. Work outside business hours, on weekends or on public holidays, when requested in writing by the Customer, will be charged at 1.5 times the applicable rate.

C.3 Time is recorded in increments of thirty (30) minutes and is subject to approval by the Customer's project manager before invoicing.

SCHEDULE D - DATA PROCESSING TERMS

D.1 **Subject matter and duration.** The Supplier processes Personal Data only to perform the Services, for the term of this Agreement and the Exit Period.

D.2 **Categories of individuals.** The Customer's retail and online customers, loyalty programme members, employees and store staff.

D.3 **Categories of Personal Data.** Names, contact details (phone number, email address, delivery address), order and purchase history, loyalty points balance, and employee identifiers. The Supplier will not process full payment card numbers; all card payments are tokenised by the Customer's payment gateway.

D.4 **Processing locations.** Data centres located in Mumbai and Hyderabad, India. No processing outside India is permitted without the Customer's prior written consent.

D.5 **Retention.** Personal Data will be retained only as long as necessary to perform the Services, and in any case will be deleted within thirty (30) days after the end of the Exit Period, as set out in Clause 20.3.

D.6 **Sub-processors.** The Supplier may engage sub-processors only with the Customer's prior written approval, and will remain liable for their compliance with these terms.

D.7 **Assistance.** The Supplier will assist the Customer, at no additional charge, in responding to requests from individuals to access, correct or erase their Personal Data, within five (5) Business Days of receiving the Customer's request.